



Notification Waiver Determination

Monadelphous – Tyden Power

Acquisition	Monadelphous Group Limited (Monadelphous) applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital of Tyden Power Pty Ltd (Tyden Power), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	27 August 2026

Parties to the Acquisition	The acquirer, Monadelphous, is an ASX-listed Australian engineering group providing construction, maintenance, and industrial services to the resources, energy, and infrastructure sectors. Its offering includes engineering, construction and maintenance services for electricity infrastructure (electrical infrastructure services). The target, Tyden Power, is a New South Wales-based provider of services for the full lifecycle of high-voltage electrical assets, delivering services to customers in the energy, utilities, and infrastructure sectors, including electrical infrastructure services. Its capabilities include transmission and distribution infrastructure, substations, protection and control systems, asset inspections, and network upgrades.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the Act. The ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information currently before it. In particular: - there is horizontal overlap between Monadelphous and Tyden Power in the supply of electrical infrastructure services in Australia - the extent to which Monadelphous is likely to be constrained by alternative suppliers of electrical infrastructure services post-acquisition, either nationally or on a state-wide (or narrower) basis, is uncertain - the parties' combined share of the national and/or state-based supply of electrical infrastructure services and the increment arising from the Acquisition is unclear.

	The ACCC considers that the Acquisition warrants consideration through the notification process, including via consultation with third parties. Based on the information provided in the application, including the parties' revenues in Australia, the ACCC considers that, if the Acquisition were put into effect, the notification thresholds would be met. For these reasons, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act